

(2) The period for which a resolution shall have statutory force under this section shall be a period expiring at the end of four months after the date on which the resolution is expressed to take effect, or, if no such date is expressed, after the date on which the resolution is passed by the Committee.

(3) In this Act any expression referring to the renewal of a tax shall be deemed to refer also to the reimposition of a tax.

2.—(1) Any payment or deduction made on account of a temporary tax within one month after the date of the expiration of the tax shall, if the payment or deduction would have been a legal payment or deduction if the tax had not expired, be deemed to be a legal payment or deduction, subject to the condition that if a resolution is not passed by the House of Commons or by the Committee of Ways and Means of the House of Commons (if that Committee is a Committee of the whole House) within that month for the renewal of the tax, or if such a resolution is passed within that month but ceases to have statutory effect under this Act, any money so paid or deducted shall be repaid or made good, and that if the tax is ultimately renewed at a different rate, or with modifications, any amount paid or deducted which could not properly have been paid or deducted under the new conditions affecting the tax shall be repaid or made good.

Payments and deductions made on account of temporary tax before renewal of tax.

For the purposes of this provision, the expression "temporary tax" means a tax which has been imposed or renewed for a limited period not exceeding eighteen months, and was in force or imposed during the previous financial year.

(2) Section ninety-five of the Finance (1909-10) Act, 1910, shall have effect with respect to any duties imposed by the Finance Act of this or any previous year, with the substitution of a reference to that Finance Act for any reference in that section to "this Act," but this provision shall not affect any past proceeding in any court of law.

10 Edw. 7.
& 1 Geo. 5. c. 8.

3. This Act shall apply only to duties of customs and excise and to income tax.

Application of Act.

4. This Act may be cited as the Provisional Collection of Taxes Act, 1913.

Short title.

CHAPTER 4.

An Act to provide for the Temporary Discharge of Prisoners whose further detention in prison is undesirable on account of the condition of their Health.

[25th April 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power of Secretary of State to discharge prisoners temporarily on account of their health.

1.—(1) If the Secretary of State is satisfied that by reason of the condition of a prisoner's health it is undesirable to detain him in prison, but that, such condition of health being due in whole or in part to the prisoner's own conduct in prison, it is desirable that his release should be temporary and conditional only, the Secretary of State may, if he thinks fit, having regard to all the circumstances of the case, by order authorise the temporary discharge of the prisoner for such period and subject to such conditions as may be stated in the order.

(2) Any prisoner so discharged shall comply with any conditions stated in the order of temporary discharge, and shall return to prison at the expiration of the period stated in the order, or of such extended period as may be fixed by any subsequent order of the Secretary of State, and, if the prisoner fails so to comply or return, he may be arrested without warrant and taken back to prison.

(3) Where a prisoner under sentence is discharged in pursuance of an order of temporary discharge, the currency of the sentence shall be suspended from the day on which he is discharged from prison under the order to the day on which he is received back into prison, so that the former day shall be reckoned and the latter shall not be reckoned as part of the sentence.

(4) Where an order of temporary discharge is made in the case of a prisoner not under sentence, the order shall contain conditions requiring the attendance of the prisoner at any further proceedings on his case at which his presence may be required.

Savings.

2.—(1) Where the prisoner is undergoing a sentence of penal servitude, the powers under this Act shall be in addition to and not in substitution for the power of granting licences under the Penal Servitude Acts, 1853 to 1891.

(2) Nothing in this Act shall affect the duties of the medical officer of a prison in respect of a prisoner whom the Secretary of State does not think fit to discharge under this Act.

Application to Scotland and Ireland.

3. In the application of this Act to Scotland and Ireland, references to the Secretary of State shall be construed as references to the Secretary for Scotland and the Lord Lieutenant respectively.

Short title.

4. This Act may be cited as the Prisoners (Temporary Discharge for Ill-health) Act, 1913.